

LEXCHEX
TERMS OF SERVICE
v1.0

The LeXcheX Accredited Investor Tokenized Certification Service (“**LeXcheX**”) is offered by MetaLeX Labs, Inc., a Delaware corporation (the “**Technology Provider**”) and MetaLeX Pro LLP, a Texas limited liability partnership that operates as a law firm (the “**Certifier**” and, together with the Technology Provider, the “**LeXcheX Operators**”).

These Terms of Service supplement the general Terms of Service for MetaLeX at <https://github.com/MetaLex-Tech/publicDocs/blob/main/MetaLeX%20Legal%20Docs/Web%20App%20ToS/MetaLeX-ToS-1.22.25.pdf>, as updated from time to time prior to the date hereof, which are incorporated herein by reference (these Terms collectively with those Terms, the “**Terms**”) and collectively the Terms govern LeXcheX and your use of it. By agreeing to apply for, receive any benefits of or otherwise use LeXcheX or any LeXcheX NFT Certificate, you are becoming a party to and are legally bound by these Terms.

ABOUT LEXCHEX

- Evaluation Process. LeXcheX evaluates whether you are an “accredited investor” as defined in Rule 501 (“**Accredited Investor**”) of the U.S. Securities and Exchange Commission’s Regulation D promulgated under the Securities Act of 1933 (“**Reg D**”) (including for purposes of Rule 506(c) thereof). This evaluation will be based solely on one of two potential methods of qualifying as an Accredited Investor:
 - *Net Worth Exceeds \$1M*. This method (the “**Net Worth Test**”) uses:
 - algorithmic checks of whether the fair market value of Blockchain Tokens you hold on the Designated Blockchain Systems exceeds any legal or virtual liabilities you may have on the Designated Blockchain Systems (e.g., on onchain credit markets) by at least \$1 million on (a) certain date(s) or for some particular period of time;
 - your responses to the LeXcheX Questionnaire on the MetaLeX Web App (which also constitute representations made to the Technology Provider and Certifier under these Terms); and
 - any other criteria the Certifier may consider relevant to the evaluation of your net worth and choose to apply from time to time in its reasonable good faith discretion (which may include manual re-evaluation after an initial automated evaluation).
 - *Sufficiently Large Investment*. This method (the “**Investment Amount Test**”) may be used in connection with a particular investment transaction occurring on the MetaLeX Web App or a partner platform (each, an “**Eligible Platform**”) and uses:
 - algorithmic checks of whether the size of the U.S. dollar amount you wish to invest in a particular Reg D offering on an Eligible Platform exceeds \$200,000 (for natural persons) or \$1 million (for entities);
 - your responses to the LeXcheX Questionnaire on the MetaLeX Web App (which also constitute representations made to the Technology Provider and Certifier under these Terms); and
 - any other criteria the Certifier may consider relevant to the evaluation of your Accredited Investor status and choose to apply from time to time in its reasonable good faith discretion (which may include manual re-evaluation after an initial automated evaluation).

- Issuance of Attorney Verification Letter/NFT. If LeXcheX evaluates you to be an Accredited Investor according to the Net Worth Test or the Investment Amount Test, the Technology Provider, on behalf of the Certifier, will issue you a non-fungible, non-transferable Blockchain Token (the “**LeXcheX NFT**”) representing a letter (the “**LeXcheX Letter**”), in the form attached hereto as Exhibit A, from a licensed attorney who is a partner or associate at the Certifier that such attorney has taken reasonable steps to verify that you are an Accredited Investor and has determined that you are an Accredited Investor. The LeXcheX Letter is addressed broadly to any prospective issuer who may wish to use the LeXcheX NFT and LeXcheX Letter as the issuer’s method of verifying a prospective investor’s Accredited Investor status pursuant to Rule 506(c)(2)(ii)(C)(3) of Reg D or otherwise. Because the LeXcheX Letter is issued in the form of the LeXcheX NFT, prospective issuers may satisfy themselves of a person’s accredited investor status based purely on such person controlling a particular Blockchain System address that also holds a valid LeXcheX NFT, allowing for entirely onchain Reg D investment offerings.
- Automated Evaluation and Manual Evaluation. The initial evaluation of the Net Worth Test and the Investment Amount Test is automated based on the Certifier’s legal opinion of algorithmic methods constituting “reasonable steps” to verify Accredited Investor status under Reg D and the issuance of a LeXcheX NFT and LeXcheX Letter will be based solely on such automated evaluation. However, the Certifier may (but is not required to) manually re-evaluate Accredited Investor status subsequently. Generally, manual re-evaluation will be based on public or private information that comes to the Certifier’s attention which indicates that you are not actually an Accredited Investor, did not actually own the assets used in the Net Worth Test, have greater liabilities than you represented in the LeXcheX Questionnaire, have suffered a material adverse change in circumstances affecting your Accredited Investor status, or are violating these Terms (e.g., by making investments on behalf of persons other than yourself using the LeXcheX NFT or LeXcheX Letter). Manual re-evaluation indicating the foregoing may result in LeXcheX voiding or revoking the LeXcheX NFT or LeXcheX Letter.
- Expiration/Revocation. In accordance with Rule 506(c)(2)(ii)(C)(3) of Reg D, each LeXcheX NFT and associated LeXcheX Letter will automatically expire on the date that is three months from the date of initial issuance, unless you earlier renew them on an Eligible Platform. Additionally, LeXcheX may revoke or void the LeXcheX NFT and LeXcheX Letter if the Certifier’s evaluation of your Accredited Investor status changes (based on known or reasonably suspected facts) or based on any violation you have committed or are reasonably suspected of committing of these Terms or other applicable policies or agreements, as further described above.
- Fee. The Technology Provider or any of its partners or affiliates may charge a fee for LeXcheX, which will be denoted on the MetaLeX Web Application or other Eligible Platform, as applicable. Such fee may either be separate or bundled with the fees for other products and services. Any such fee is entirely final and non-refundable, even if the LeXcheX NFT or LeXcheX Letter is revoked or voided prior to the automatic three-month expiration date and even if any securities issuer does not accept the LeXcheX NFT or LeXcheX Letter.

APPLICATION PROCEDURE

- Onchain Questionnaire. To apply for the LeXcheX NFT, you must complete the requested data fields on the applicable LeXcheX sub-page of the MetaLeX Web Application or other Eligible Platform (the “**Questionnaire**”). **NOTE: your data entered into the Questionnaire will be fully public and permanently stored on the Designated Blockchain System and may be used by anyone for any purpose and will not be capable of being deleted. Do not enter any data that you wish to keep private or confidential and do not use LeXcheX if your local jurisdiction requires that such information be deletable or imposes use limitations on such data that you are not permitted to waive or release in advance under these ToS.**
- Evaluation and Certification. Once you submit the completed Questionnaire through the MetaLeX Web Application or other Eligible Platform and complete any other required steps (such as escrowing of

applicable fees and investment amounts, agreeing to these ToS, etc.), your responses and the associated Blockchain Systems data will be automatically evaluated by the Certifier to determine whether you satisfy the Net Worth Test or Investment Amount Test, as applicable. If you satisfy the applicable test, you will be automatically issued a LeXcheX Letter and LeXcheX NFT. If you do not satisfy the applicable test, you not be issued a LeXcheX Letter or LeXcheX NFT and any escrowed fees or investment amounts will be automatically refunded to you.

- **Application Procedures.** The Parties shall mutually execute and deliver these Terms and consummate the SAFE Purchase by following the Application Procedures set forth in Section .1. Completion of the Application Procedures by the Parties will cause the details of these Terms and the SAFE Purchase to be recorded on the Designated Blockchain System and will deploy certain Smart Contracts on the Designated Blockchain System to assist with the performance of the Parties' respective obligations under these Terms, including the Deal Manager Smart Contract that will escrow the Parties' respective Blockchain Tokens (i.e., the Purchase Amount Tokens and the SAFE Certificate Token) and effectuate the SAFE Purchase.

REPRESENTATIONS

You hereby represent and warrant to the LeXcheX Operators, any owners/operators of Eligible Platforms, and each securities issuer that relies on LeXcheX to permit your participation in a Reg D offering, as follows:

- **Questionnaire Accuracy.** Your responses to the questionnaire are accurate and not misleading.
- **Capacity, Organization, and Good Standing.** You are either: (a) an individual who is of legal age of majority, possesses legal capacity to contract, and is of sound mind under the laws of your primary jurisdiction of residence; or (b) a legal entity duly formed, organized, validly existing, and in good standing under the laws of your jurisdiction of formation.
- **Authorization.** (a) If you are an entity, all necessary corporate or organizational actions have been taken by your directors, managers, officers, members, stockholders, or any other persons with direct or indirect authority or economic, beneficial, or voting interest, to authorize your use of LeXcheX and agreeing to these Terms. (b) If you are a natural person, you have full legal authority, capacity, and are of sound mind to agree to use LeXcheX and agree to these Terms.
- **Enforceability.** These Terms constitute your valid and legally binding obligation, enforceable against you in accordance with therewith, subject only to limitations imposed by: (a) bankruptcy, insolvency, reorganization, moratorium, fraudulent conveyance, or other laws affecting creditors' rights generally; and (b) laws limiting availability of specific performance, injunctive relief, or other equitable remedies.
- **Token Ownership; No Encumbrances.** You own the Blockchain Tokens being used to pay any fees or prove any Accredited Investor status in connection with LeXcheX, free and clear of any liens, claims, encumbrances, or transfer restrictions.
- **Compliance with Other Agreements.** Your execution, delivery, and performance of these Terms, and your use of LeXcheX, will not breach, violate, default under, or conflict with any judgment, order, writ, decree, contract, instrument, or agreement to which you are or any of your relevant property is bound.
- **Private Key Ownership.** You are the sole and exclusive holder, knower, and owner of the private key(s) associated with blockchain addresses used in connection with LeXcheX and the seed(s) generating such private key(s).
- **AML Compliance.** To the best of your knowledge, none of the Blockchain Tokens being used to pay any fees or prove any Accredited Investor Status in connection with LeXcheX are derived from or related to unlawful activities such as money laundering, terrorist financing, or proliferation financing. You, and

any agent or nominee for whom you act, are neither subject to sanctions administered or enforced by any applicable governmental or intergovernmental authority nor organized or residing in a country subject to comprehensive sanctions.

- **No Representations from Other Persons.** You have done your own due diligence into LeXcheX and all related matters and are not relying upon any representation (express or implied) of the Technology Provider or Certifier or other persons.

KEY MANAGEMENT

You are responsible for maintaining access to and securing against access by third parties any ‘wallet’ or private keys to be used by you in connection with these Terms and the transactions contemplated thereby, including the use of such private keys to sign these Terms and to execute transactions on the applicable Deal Management Technologies as may be required under these Terms. You assume all risk of loss of access to or theft, misappropriation, unauthorized access or other exploitation of the foregoing by third parties.

PERMITTED USES; PROHIBITED USES/

- **Permitted Uses.** LeXcheX is available exclusively for lawful use by Accredited Investors.
- **Prohibited Uses.** You must not do any of the following (the “*Prohibited Uses*”):
 - make any false or misleading representation in the LeXcheX Questionnaire or this Agreement;
 - use LeXcheX if you are not an Accredited Investor;
 - employ LeXcheX as, or in connection with, any device, scheme or artifice to defraud, or otherwise materially mislead, any person;
 - violate, breach or fail to comply with any applicable provision of these ToS or any other terms, policy or agreement governing the use of LeXcheX in whole or in part;
 - engage or attempt to engage in or assist any hack of or attack on LeXcheX or any wallet application or device, including any “sybil attack”, “DoS attack” or “griefing attack” or theft;
 - commit any violation of applicable laws, rules or regulations; or
 - engage in any act, practice or course of business that operates to circumvent any sanctions or export controls targeting you or the country or territory where you are located.

INDEMNIFICATION

You hereby covenant and agree to hold harmless and indemnify each of the LeXcheX Operators, any owners/operators of Eligible Platforms, and each securities issuer that relies on LeXcheX to permit your participation in a Reg D offering and each of their respective directors, officers, and investors (the “Indemnitees”) from and against, and to compensate and reimburse each of the Indemnitees for any damages that are suffered or incurred at any time by any of the Indemnitees or to which any of the Indemnitees are otherwise subject at any time (regardless of whether or not such damages relate to any third party claim) and which arise from or as a result of, or are related to, any inaccuracy in or breach of any representation or warranty made by You in these Terms or any breach of any of Your covenants or obligations in these Terms. “Damages” for purposes of this provision means any loss, damage, injury, decline in value, decline in reputation or business opportunities, rescission reward, equitable reward, costs of complying with injunctive relief, liability (whether contingent or mature), settlement, judgment, award, fine, penalty, tax, fee (including reasonable attorneys’ fees), charge, cost (including costs of investigation) or expense of any nature, including in connection with any legal proceedings. You hereby acknowledge and agree that the LeXcheX Operators may (but is not required) pursue claims under

this provision on behalf of owners/operators of Eligible Platforms or other Indemnitees.

BENEFICIARIES

These Terms shall be binding upon and inure to the benefit of the LeXcheX Operators and the You. All other Indemnitees (as defined above) shall be third-party beneficiaries under these Terms, solely as against You and solely with respect to the indemnification provision set forth above.

EXHIBIT A

FORM OF ACCREDITED INVESTOR CERTIFICATION LETTER

METALEX ACCREDITED INVESTOR CERTIFICATION

Gabriel J. Shapiro, Esq., a licensed California attorney (#275786), acting on behalf of MetaLeX Pro, LLP, a Texas limited liability partnership that operates as a law firm, hereby certifies that, as of the NFT Issuance Time, the Investor was an “accredited investor” within the meaning of Rule 501(a) of Regulation D.

This letter is intended to constitute, and, for the period beginning from the NFT Issuance Time until the Expiration Time (approximately 90 days from the NFT Issuance Time), may be relied upon as (including for purposes of SEC Rule 506(c)), a written confirmation from a licensed attorney who is in good standing under the laws of the jurisdictions in which he or she is admitted to practice law, that such attorney has taken reasonable steps within the prior three months that the Investor is an accredited investor. This letter shall automatically expire 90 days after the NFT Issuance Time, unless earlier terminated or renewed by action of MetaLeX—in the event of such renewal, the metadata of the Certificate Token will be modified by MetaLeX accordingly to reflect the new dates during which this Accreditation Letter may be relied upon.

This Accreditation Letter is represented by a non-fungible blockchain token issued by MetaLeX Labs, Inc. (the “**Certificate Token**”) issued to one or more blockchain addresses reasonably believed (based on obtaining private key signatures) to be solely owned and controlled by the Investor.

The Certificate Token was issued by smart contracts instantiating the MetaLeX LeXcheX protocol (including lexchex.sol) at 0xc8db0c3f47656aee725b0AD1835F9A3FbD0a0b62 on Ethereum or applicable Ethereum “layer-2” networks (such instance, the “**LeXcheX Smart Contract**”). Specific details of this Accreditation Letter are stored in a mapping of the **Accreditation** struct to the tokenID of the Certificate Token in the memory of the LeXcheX Smart Contract (the “**Mapping**”), including the following details providing the meanings of certain capitalized terms herein:

“**Investor**” means the individual or entity identified by the investorName value stored in the Mapping and, if an entity, the investorType and investorJurisdiction values stored in the Mapping.

“**NFT Issuance Time**” means the time identified by the **issuanceDate** value stored in the Mapping.

“**Expiration Time**” means the time identified by the **expiryDate** value stored in the Mapping.

The Certificate Token shall not be transferred in whole or in part to another blockchain address apart from the blockchain address to which it was originally issued, and such blockchain address shall not be transferred in whole or in part to the control of any person other than the Investor, without the prior written consent of MetaleX Labs, Inc., a Delaware corporation (“**MetaLeX**”).

MetaleX has certain administrative controls over the Certificate Token, including controls over the transferability of the Certificate Token and the power to set the status of the Certificate Token to “void,” in each case, in accordance with the applicable LeXcheX Terms of Service entered into by the Investor.

/s/ Gabriel J. Shapiro, Esq.

For: MetaLeX Pro, LLP, a Texas limited liability partnership